

Kum.Roshini J.Reddy vs) Smt.J.Pavithra Reddy on 26 March, 2016

IN THE COURT OF XVIII ADDL.CITY CIVIL JUDGE
AT [CCH.NO.10], BANGALORE CITY.

Dated this day the 26th March 2016

PRESENT

SRI K.AMARANARAYANA B.Com., LL.M.
XVIII Addl.City Civil Judge.

O.S.No.3363/2008

Plaintiff Kum.Roshini J.Reddy,
D/o Late G.Jayaram Reddy,
Aged about 15 years,
Minor Reptd by her mother /
Natural Guardian
Smt.M.Shameem Banu,
R/at C/o Sampark No.80,
2nd Main Road, 1st Block,
Koramangala,
B A N G A L O R E - 34.
[By Sri.N.S.R./R.A.R., Advocates]

/VS/

Defendant/s: 1) Smt.J.Pavithra Reddy
W/o Late G.Jayaram Reddy,
Major in age,

2. J.Dhurendhar Reddy,

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S/o Late G.Jayaram Reddy,
Major in age,

3. Smt.J.Harika,
D/o Late G.Jarayam Reddy,
Major in age,

All are R/at No.151/1, 1st Main,
8th Block, Koramangala.

B A N G A L O R E - 95.

4. B.N.Adarsh,
S/o B.S.N.Hari,
Aged about 25 years,
Office at No.1,
Gutte Anjaneya Temple Street,
Hosur Road, Wilson Garden,
B A N G A L O R E - 27.

5. Smt.Muniyamma,
W/o Late Gundappa Reddy,
Aged about 83 years,

6. Jayaprakash Reddy,
S/o late Gundappa Reddy,
Aged about 55 years,

7. Raghuramareddy,
S/o Late Gundappa Reddy,
Aged about 52 years,

Defendant No.5 to 7 are
R/at Agara Village & Post,
Sarjapura Road, Begur Hobli,
Bangalore South Taluk,
B A N G A L O R E - 34.
[By Sri.A.M.S.R.,Adv., for D1 to 3,

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O.S.No.3363/2008

Sri.G.V.S., Adv., for D5 to 7]

Date of institution of suit 26.5.2008

Nature of the Suit Partition & Permanent Injunction
(suit on pronote, suit
for declaration and
possession suit for
injunction,) etc.

Date of the commencement of recording of the evidence. 09.07.2012

Date on which the Judgment was pronounced. 26.3.2016

Year/s Month/s day/s

Total duration: 07 10 00

(K.AMARANARAYANA)
XVIII Addl.City Civil Judge,
Bangalore.

JUDGMENT

The plaintiff filed this suit against the defendants 1 to 7 prays to pass judgment and decree for partition and separate possession of half share in the suit schedule property by metes and bounds and for permanent injunction restraining the defendants from alienating the suit schedule property in favour of any prospective purchasers, till partition is effected by metes and bounds among the plaintiff and defendants 1 to 3, 5 to 7 and for costs.

2. Case of the plaintiff in brief is as follows:

The plaintiff is the daughter of Smt.M.Shameem Banu the 2nd wife of late G.Jayaramareddy born on 28.8.1993. The defendant No.1 is the first wife and defendant No.2 & 3 are children of late G.Jayaramareddy. The marriage of Smt.M.Shameem Banu and Late G.Jayaramareddy was registered on 18.1.1991 with Sub-Registrar, Shivajinagar, Bangalore vide Document No.692/1990-91 of Book IV, Vol.227 pages 166. Thus defendant No.2 & 3 became the brother and sister of plaintiff. The suit schedule property was acquired by Late G.Jayaramareddy under registered sale deed dtd.21.3.1985 and the revenue records still stands in his name. Her father died on 8.3.1997. She being the daughter of 2nd wife of Late G.Jayaramareddy is entitled to half share in the suit schedule property. The defendants 1 to 3 are trying to dispose of the same without her knowledge. On 13.2.2007 she caused issued legal notice to the defendants to apportion the suit schedule property by metes and bounds besides sought for the share in the ancestral property left behind by her late grand father Gundappa Reddy. The defendants gave untenable reply. Hence the suit is for partition and separate possession.

3. The defendant Nos.1 to 3 & 5 to 7 filed their written statements.

(a) The defendant No.1 to 3 in their written statement denied all the plaint averments besides contending that the alleged marriage document dtd.18.1.1991 is created one. They specifically denied the marriage of plaintiff's mother with Late G.Jayaramareddy. The suit schedule property is a co-

parcenary property of deceased G.Jayaramareddy, his brothers Jayaprakashreddy, Raghuramreddy and Chandrashekarreddy. The suit schedule property purchased out of joint earnings of the family members. The suit schedule property was partitioned among the defendants including the mother and brothers of G.Jayarareddy under registered partition deed dtd.

14.11.2002 and they are in respective possession of their shares. G.Jayaramareddy died leaving only the defendant No.1 to 3 and his mother to succeed his estate. The mother of plaintiff Smt.M.Shameem Banu had filed the suit in OS.No.1990/2003 against G.Jayaramareddy, G.Raghuramareddy and G.Chandrashekar reddy in respect of the suit schedule property and the same came to be dismissed on 16.7.2007. The plaintiff has suppressed material facts. The suit is not properly valued and the court fee paid is insufficient. Inview of the registered partition deed dtd.14.11.2002 the present suit for the relief of partition without seeking cancellation or setting aside of the said partition deed is liable to be dismissed. On the above grounds prays to dismiss the suit.

(b) The defendant No.5 to 7 in their written statement denied the plaint averments and contended that the suit against them is barred by limitation. Further they have reiterated the contention taken by the defendant No.1 to 3 in their written statement. Further they have narrated with regard to the allotment of shares in the suit schedule property to the parties under registered partition deed dtd.14.11.2002 and other ancestral properties. Further contended that the suit schedule property was the subject matter of acquisition by KIADB and even to day the revenue records are in the name of KIADB. Further contended that in order to fulfill the financial difficulties all the family members of them along with others approached 4th defendant and they have executed the registered agreement dtd.1.7.2009 in his favour and received the amounts in terms of the shares allotted to them. On the above grounds prays to dismiss the suit.

4. Based on the above pleadings, the predecessor in office has framed the following issues:

1. Whether the plaintiff proves that her mother Smt.M.Shameem Banu is the 2nd wife of late G.Jayaram Reddy?
2. Whether the plaintiff proves that the suit schedule property is the self acquired property of late G.Jayaramareddy?
3. Whether defendants prove that suit is bad for non-joinder of necessary parties?
4. Whether the defendants prove that inview of dismissal of suit filed by M.Shameem Banu, this suit is not maintainable?
5. Whether the plaintiff is entitled for the relief as sought?
6. What order or decree?

Addl.Issues:

1. Whether the defendant No.5 to 7 prove that the suit schedule property was partitioned among defendants 1 to 3, 5 to 7 under registered partition deed dtd.14.11.2002?

2. Whether the defendants 5 to 7 prove that they have transferred their right, title and interest over their respective shares in the suit schedule property in favour of one B.N.Adarsh under registered agreement dtd.1.7.2009?.

5. The plaintiff got examined herself as PW1 besides examining her mother as PW2, got marked Ex.P1 to 18 and closed her side. The Defendant No.2 & 7 got examined themselves as DW1 & 2, got marked Ex.D1 to D22 and closed their side.

6. Heard the arguments on both sides.

7. My findings to the above issues are as under:

Issue No.1	:	Affirmative
Issue No.2	:	Affirmative
Issue No.3	:	Negative
Issue No.4	:	Negative

Issue No.5	:	Affirmative
Addl. Issue No.1:	:	Negative
Addl. Issue No.2:	:	Negative
Issue No.6	:	As per final order

for the following:

REASONS

8. Issue No.1: Late Gundappareddy and

Defendant No.5 Smt.Muniyamma are the parents of Late G.Jayaramareddy, Jayaprakashreddy - 6th defendant, Raghuramareddy - 7th defendant and Chandrashekarareddy whose where abouts is not known is admitted. The fact that late B.Jayaramareddy married 1st defendant and got a son and daughter who arrayed as defendant No.2 & 3 through 1st defendant is not in dispute. The defendant No.4 is a stranger to the family of G.Jayaramareddy and stated to be the agreement holder of suit schedule property. The plaintiff claimed that she is the daughter of late G.Jayaramareddy born through Smt.M.Shameem Banu. It is the assertion of the plaintiff that late G.Jayaramareddy married her mother Smt.M.Shameem Banu on 18.1.1991 and she was born on 28.8.1993 out of the wedlock. According to the plaintiff her mother Smt.M.Shameem Banu is a muslim by religion and the marriage of her parents was a registered before Sub-registrar, Shivajinagar, Bangalore. Apparently the marriage of plaintiff's mother with her father G.Jayaramareddy took place during the subsistence of marriage of her father with 1st defendant and became void marriage. It is to be noted that the defendants 1 to 3 and 5 to 7 denied the relationship of plaintiff with G.Jayaramareddy. The plaintiff was a minor when the suit was instituted. The suit initially was represented by her mother Smt.M.Shameem Banu as a natural guardian and after attaining majority she continued the proceedings in her individual capacity.

9. The plaintiff to prove the relationship of her mother Smt.M.Shameem Banu with Late G.Jayaramareddy has relied upon the oral evidence of PW1 & 2 and documentary evidence Ex.P1 to P4, P7 to 9, 12 & 13. PW2 Smt. M.Shameem Banu has stated in her evidence that Late G.Jayaramareddy married her on 18.1.1991 and their marriage was registered before Sub-Registrar, Shivajinagar, Bangalore. PW2 has specifically stated that Ex.P7 is the marriage agreement entered into between her and Late G.Jayaramareddy on 18.1.1991 and the same was registered. The learned counsel appearing for the defendants 1 to 3 cross examined PW2 to discredit her evidence. On perusal of entire cross examination of PW2, nothing is brought out by the defendants 1 to 3 to discredit her evidence. PW2 withstood the test of cross examination and has specifically stated that her marriage with late G.Jayaramareddy was took place on 18.1.1991 and the plaintiff was born to her through Late G.Jayaramareddy out of the wedlock on 28.8.1993. It is seen from the cross examination of PW2 that she and late G.Jayaramareddy were residing at Koramangala from 1991 to 1997 and changed 2 or 3 houses. No doubt PW2 has not produced any documents to show that she and G.Jayaramareddy were residing together. Looking to the marriage certificate there is no reason as to why PW2 gone to the extent of claiming a stranger as her husband. Looking to the over all cross examination of PW2 there is nothing to disbelieve the oral evidence of PW2. Reading the oral evidence of PW2 together with the marriage agreement Ex.P7 it could be inferred that Late G.Jayaramareddy married PW2 on 18.1.1991 during the subsistence of his marriage with 1st defendant.

10. Ex.P2 to P4 & P8, 9, 12 & 13 are taken for consideration. Ex.P2 & 3 are the birth certificates which are not seriously disputed by the defendants evident that the plaintiff was born on 28.8.1993 and her name is shown as Jayaramareddy. The place of birth of plaintiff according to Ex.P2 & 3 is St.Johns Hospital, Bangalore. Ex.P2 & 3 was produced before the court on 9.7.2012 by the plaintiff. The defendants 1 to 7 who are on record did not place any documents to indicate that they have questioned the entries made in Ex.P2 & 3 since 9.7.2012. On going through the cross examination of PW1 & 2, the contesting defendants have not questioned the entry regarding Jayaramareddy finds place in Ex.P2 & 3. Ex.P4 is the certificate issued by St.Euphrasia's Girls High School, Bangalore evident that plaintiff is the daughter of G.Jayaramareddy. On going through the cross examination of PW1& 2 the contesting defendants have not challenged the entry regarding G.Jayaramareddy in Ex.P4. Ex.P8, 9, 12 & 13 the school certificates issued by Chinmaya Vidhayalaya and St. Euphrasia's Girls High School indicate that plaintiff is the daughter of G.Jayaramareddy. A perusal of cross examination of PW1 nothing is brought out by the defendants 1 to 3 & 5 to 7 to show that the Late G.Jayaramareddy is not belongs to their family. The evidence of PW1 & 2 remained unchallenged in respect of the entries made in Ex.P8, 9, 12 & 13. On going through the oral evidence of PW1 & 2 and the contents of educational certificates of plaintiff would go to show that the plaintiff is the daughter Late G.Jayaramareddy and Smt. Shameem Banu. There is no reason as to why the plaintiff created the educational records and made wrongful claim against a stranger as her father. The evidence placed on record by the defendants do not rebut both oral and documentary evidence placed by the plaintiff. On going through the oral evidence of PW 1 & 2 and documentary evidence Ex.P2 to 4, P7 to 9, 12 & 13 clearly establishes the marriage of Late G.Jayaramareddy with plaintiff's mother Smt.Shameem Banu for 2nd time on 18.1.1991 and she born out of their wedlock on 28.8.1993. Therefore I answered Issue No.1 in the affirmative.

11. Issue No.2: - The plaintiff contended that the suit schedule property is the self acquired property of Late G.Jayaramareddy. The defendants 1 to 3 & 5 to 7 denied the plaintiff's assertion regarding the acquisition of suit schedule property by Late G.Jayaramareddy and contended that the suit schedule property is their ancestral property. The plaintiff to prove her's assertion has produced Ex.P14 - certified copy of sale deed dtd. 21.3.1985. A perusal of Ex.P14 and the admission made by DW1 & 2 evident that Late G.Jayaramareddy purchased the suit schedule property out of his own earnings. Ex.P14 does not recite that the same was purchased out of joint family nucleus. There is nothing on record placed by the defendants 1 to 3 & 5 to 7 to indicate that Late G.Jayaramareddy and his brothers acquired any ancestral properties and the suit schedule property was purchased out of income of said ancestral properties. Ex.D6 to 10, & D18 to 21 the RTC extracts pertaining to the suit schedule property does not disclose that it is a joint family property of defendants 1 to 3 & 5 to 7. Ex.D18 to 21 discloses about the acquisition. Apparently late Gundappareddy father of Late G.Jayaramareddy has not left any properties except the house properties in the village.

12. Acquisition of property may not be a ground to say that the suit schedule property is not the self acquired property of Late G.Jayaramareddy. Looking to the cross examination of PW1 & 2 no worthwhile is brought out by the defendants 1 to 3 & 5 to 7 to show that the suit schedule property was purchased by Late G.Jayaramareddy out of joint family income. Looking to the over all evidence both oral and documentary the contention taken by the defendants 1 to 3 & 5 to 7 that the suit schedule property is their joint family property renders improbable. The evidence on record clearly proves that the suit schedule property is the self acquired property of Late G.Jayaramareddy. Hence I answered Issue No.2 in the Affirmative. .

contended that the suit is bad for non-joinder of necessary parties. It is to be noted that the defendants 5 to 7 were subsequently brought on record by the plaintiff after noting the contention taken by the defendants 1 to 3 in their written statement. The defendant No.4 was also impleaded as a subsequent agreement holder as he possess some interest over the suit schedule property. On going through the evidence of PW1, nothing is brought out by the defendants that any of the interested parties are left out by the plaintiffs. Looking to the subsequent developments in impleading defendants 5 to 7 the suit cannot held to be bad for non-joinder of necessary parties. Therefore it is held that the contention taken by the defendants 1 to 3 in their written statement that the suit is bad for non-joinder of necessary party is not sustainable. Hence I answered Issue No.3 in the Negative.

14. Issue No.4 :- It is contended by the defendants 1 to 3 & 5 to 7 that the present suit is not maintainable in view of the dismissal of suit filed by Smt.M.Shameem Banu ie., mother of plaintiff. The defendants have produced the Ex.D3 to D5 to show that Smt.Shameem Banu filed a suit against the defendant No.6 & 7 and their brother G.Chandrashekara Reddy. It is seen from the oral evidence of DW1 & 2 that the whereabouts of G.Chandrashekarareddy is not known. PW2 admits in the cross examination that she filed a suit in OS.No.1990/2003 and the same was dismissed.

15. A perusal of Ex.D3 to 5 evident that the plaintiff's mother filed a suit in OS.No.1990/2003 against the brothers of Late G.Jayaramareddy for permanent injunction based on possession in respect of the property bearing No.12, situated at Agara Village. The defendants 6 & 7 herein filed

written statement as defendant No.1 & 2 therein denying the contention of the plaintiff's mother herein. The subject matter of this suit and the subject matter of OS.No.1990/2003 is one and the same. The relief claimed by the plaintiff's mother in the earlier suit is for permanent injunction. The plaintiff is not a party in OS.No.1990/2003 has sought for a share by way of partition and separate possession in this suit. The dismissal of suit in OS.No.1990/2003 does not bar the present plaintiff to seek partition and separate possession of her share in the suit schedule property. Therefore the contention of the defendants 1 to 3 & 5 to 7 that the present suit is not maintainable in view of dismissal of suit in OS.NO.1990/2003 filed by plaintiff's mother is not sustainable. Hence I answered Issue No.4 in the Negative.

16. Addl.Issue No.1 & 2:- It is contended by the defendants 1 to 3 & 5 to 7 that they partitioned the suit schedule property under partition deed dtd.14.11.2002. The partition deed is marked as Ex.D17. Ex.D17 is the partition deed dtd. 14.11.2002. A perusal of Ex.D17 the plaintiff is not a party to the partition alleged to have been effected on 14.11.2002. The defendants 1 to 3 & 5 to 7 partitioned the suit schedule property and the house properties belongs to the family. The sale deed Ex.P14 discloses that Late G.Jayaramareddy purchased the suit schedule property and became the absolute owner. The evidence on record does not disclose that Late Gundappa reddy left any properties and the defendants 1 to 3 & 5 to 7 inherited the same. Moreover the evidence on record does not disclose that Late G.Jayaramareddy purchased the suit schedule property out of the income of the properties left by his father Gundappareddy. Looking to the over all circumstances the partition said to have been taken place on 14.11.2002 between defendants 1 to 3 & 5 to 7 do not binds the plaintiff as she is not a party to the same. Of course based on Ex.D17 it could be construed that these defendants effected partition.

17. It is contended by the defendants 5 to 7 that they have transferred their right, title and interest over their respective shares in the suit schedule property in favour of defendant No.4 under registered agreement dtd. 1.7.2009. The defendant No.4 did not appear before the court pursuant to summons and contested the suit. Ex.P18 is the certified copy of agreement of sale executed by defendants 1 to 3 & 5 to 7 and one Sandeep on 1.7.2009. On going through the cross examination of PW1 & 2 a single suggestion is not put forth by the defendants 1 to 3 & 5 to 7 to the effect that they entered in to agreement of sale with defendant No.4 in respect of the shares of defendants 5 to 7 in the suit schedule property. Ex.P10 is the copy of legal notice issued by the plaintiff to defendant No.4 on 21.7.2009 informing about her rights over the suit schedule property and not to enter any transaction with defendants 1 to 3 & 5 to 7 and one Sandeep. Ex.P11 evident that the legal notice Ex.P10 was served on the defendant No.4. The notice was issued after execution of alleged agreement of sale. There is nothing on record placed by the defendants 1 to 3 & 5 to 7 that the agreement of sale was performed in favour of defendant No.4. Therefore based on Ex.P18 it could be said that the defendants 1 to 3 & 5 to 7 are attempting to alienate the suit schedule property. Mere on Ex.P18 it cannot be held that the rights of defendant No.5 to 7 in respect of their shares in the suit schedule property was transferred to defendant No.4. Hence I answered Addl.Issue No.1 & 2 in the Negative.

18. Issue No.5 & 6:- The plaintiff claimed her legitimate share in the suit schedule property as a daughter of Late G.Jayaramareddy. It is held on issue No.1 that Smt.M.Shameem Banu is the wife of

Late G.Jayaramareddy and plaintiff is their daughter. It is also held that the marriage of late G.Jayaramareddy and Smt.M.Shameem Banu took place during the subsistence of marriage of 1st defendant with Late G.Jayaramareddy. In view of my findings on issue No.2 the suit schedule property is the self acquired property of Late G.Jayaramareddy. Class-1 of Sec.5 of Hindu Marriage Act 1955 introduces monogamy in the law applicable to Hindus by enacting as an essential condition of marriage that neither party must have a spouse living at the time of marriage. A marriage in contravention of that condition is a nullity. A prior subsisting marriage is a civil liability which renders marriage with any person whose prior marriage is subsisting void ab-initio, with the result that the parties to such marriage are not husband and wife. Sec.11 lays down inter-alia, the rule that any such marriage solemnized after the commencement of this Act is void. The legal fiction as is operative in Sec.16 of Hindu Marriage Act, children born of a void marriage would have to be treated as legitimate for all purposes including succession to the property of their parents. The net effect of sec.16 being that the benefit of legitimacy is conferred upon any child born either before or after the commencement of the date of amendment. Looking to the over all circumstances the plaintiff is held to be the legitimate child of Late G.Jayaramareddy born through Smt.M.Shameem Banu u/s.16 of Hindu Marriage Act.

19. Looking to the over all evidence both oral and documentary, from all angles it is crystal clear that the plaintiff is entitled for a share in the suit schedule property as a legal heir of Late G.Jayaramareddy along with defendants 1 to 3 & 5. Further the plaintiff has proved that the defendants are trying to alienate the suit schedule property in favour of others. Therefore, in view of foregoing reasons and under the circumstances, it is held that the plaintiff is entitled for a decree of partition and separate possession of 1/5th share in the suit schedule property and for the relief of injunction as prayed. Hence I answered Issue No.5 & 6 accordingly and proceed to pass the following:

ORDER The suit filed by the plaintiff is partly decreed. The plaintiff is entitled for partition and separate possession of 1/5th share in the suit schedule property by metes and bounds. The defendants 1 to 3 and 5 to 7 are hereby directed put the plaintiff in possession of her 1/5th share in the suit schedule property. Failing which the plaintiff to take her 1/5th share by initiating final decree proceedings.

Further the defendants 1 to 3 & 5 to 7 are here by restrained from alienating the suit schedule property in favour of others till partition is effected by metes and bounds.

Under the circumstances no order as to costs.

Draw decree accordingly.

[Dictated to the Judgment Writer on computer, computerized, and print out taken by him, corrected and then pronounced by me in open court, this day the 26th March 2016].

(K. AMARANARAYANA) XVIII ADDL. CITY CIVIL AND SESSIONS JUDGE, BANGALORE
ANNEXURE

1.No. of witnesses examined on behalf of plaintiff:

PW1 : Kum.Roshini J.Reddy
PW2 : Smt.M.Shameem Banu

2.No. of documents marked on behalf of plaintiff:

Ex.P1 : Genealogical Tree
Ex.P2 & 3 : Birth Certificates

Ex.P4 : Certificate issued by St.Euphrasia's
Girls High School
Ex.P5 & 6 : Encumbrance Certificates
Ex.P7 : Certified copy of marriage certificate
of plaintiff's parents
Ex.P8 : Extract of school admission register
Ex.P9 : Donation Certificate
Ex.P10 : Copy of legal notice
Ex.P11 : Postal acknowledgement
Ex.P12 & 13: Study certificates
Ex.P14 : Certified copy of sale deed dtd.21.3.1985
Ex.P15 : Death certificate of G.Jayaramareddy
Ex.P16 : Transfer certificate
Ex.P17 : Acknowledgment
Ex.P18 : Certified copy of Agreement of sale

3.No.of witnesses examined on behalf of defendants:

DW1 : Dhirendhar Reddy
DW2 : Raghuramareddy

4.No. of documents marked on behalf of defendants:

Ex.D1 : RTC Extracts of 1985-86 & 1986-87 Ex.D2 : Copy of legal notice
dtd.26.2.2007 Ex.D3 : Certified copy of plaint in OS.No.1990/03 Ex.D4 : Certified
copy of WS in OS.No.1990/03 Ex.D5 : Certified copy of order sheet in OS.1990/03
Ex.D6 to 10: RTC Extracts Ex.D11 : M.R.extract Ex.D12 : Conversion Gazette
Notification Ex.D13 : Govt.Notification dtd.15.1.2001 Ex.D14 : Notification issued by
KIADB Ex.D15 : Notice issued by L.A.O, KIADB Ex.D16 : Notice dt.30.4.04 issued by
Spl.LAO, KIADB Ex.D17 : Registered partition deed dtd.14.11.2002 Ex.D18 to 21:
RTC Extracts Ex.D22 : Invitation Card.

XVIII Addl. City Civil Judge Bangalore City.

Judgment pronounced in the open court as per separate judgment. Operative portion of judgment is as follows:

ORDER The suit filed by the plaintiff is partly decreed. The plaintiff is entitled for partition and separate possession of 1/5th share in the suit schedule property by metes and bounds. The defendants 1 to 3 and

5 to 7 are hereby directed put the plaintiff in possession of her 1/5th share in the suit schedule property.

Failing which the plaintiff to take her 1/5th share by initiating final decree proceedings.

Further the defendants 1 to 3 & 5 to 7 are here by restrained from alienating the suit schedule property in favour of others till partition is effected by metes and bounds.

Under the circumstances no order as to costs.

Draw decree accordingly.

XVIII Addl.C.C. & S.J., Bangalore